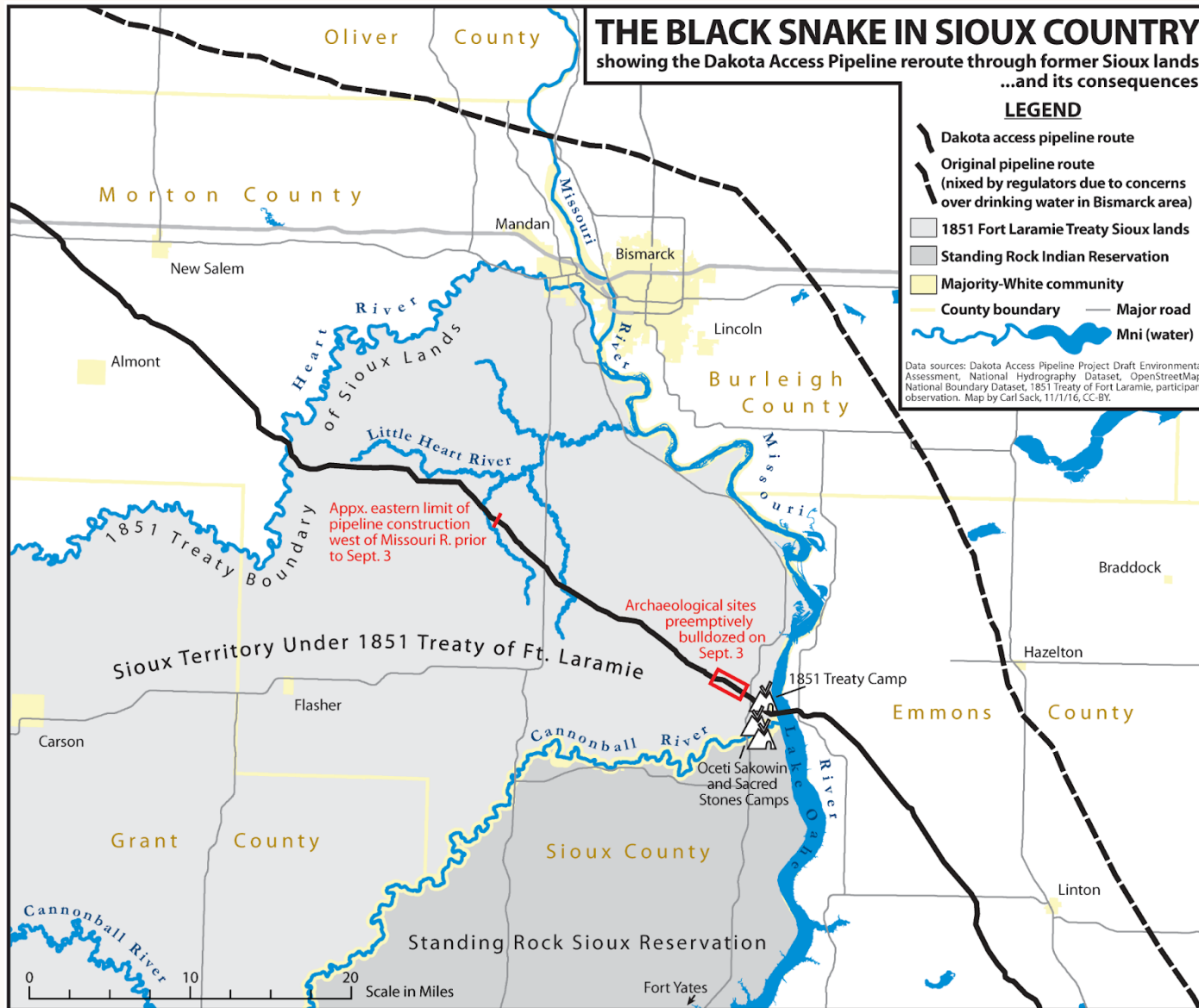


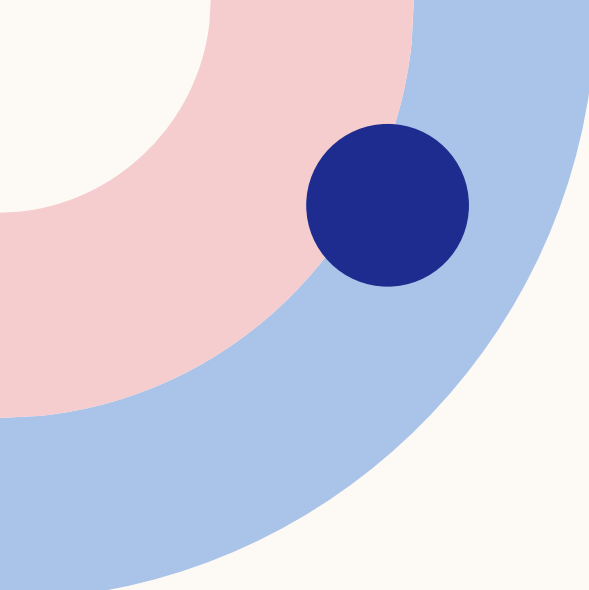
**THE STANDING
ROCK SIOUX
TRIBE'S LITIGATION
AGAINST THE
DAKOTA ACCESS
PIPELINE**

Sylas Horowitz

DAKOTA ACCESS PIPELINE (DAPL)



- 1,172-mi, ND → IL
- \$3.78b, 570,000 bpd
- Violates treaty rights
- Threatens sacred prayer sites and ancestral burial grounds
- Passes through 22 bodies of water
- Missouri River and Lake Oahe— fishing grounds and primary water source



SERIES OF EVENTS

JANUARY 2016

DAPL approved for construction via EA/FONSI

JULY 2016

Standing Rock Sioux Tribe begins litigation against Corps

AUGUST 2016

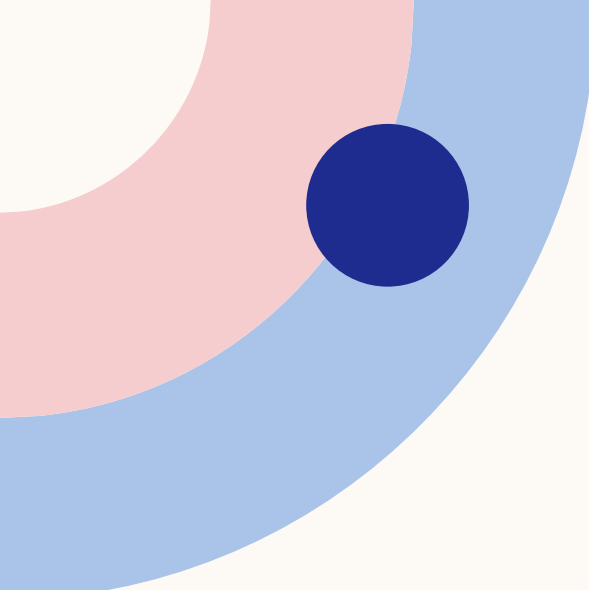
Thousands of water protectors protest from over 200 tribes, militarized police and Nat Guard injure 300 & face over \$1,500 each in felony charges/bonds

JANUARY 2017

Corps conduct site visit and decide to delay an easement for construction

FEBRUARY 2017

Trump issues presidential memorandum to accelerate construction and operation, overriding EIS



SERIES OF EVENTS

MAY 2017

DAPL began active

JUNE 2017

D.C. District Court finds federal permits for pipeline are illegal, remands Corps to address flaws

FEBRUARY 2019

Corps find that EIS is not required

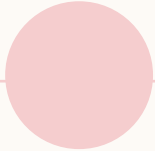
MARCH 2020

Court finds EIS required due to NEPA violations, orders temporary halt to operations in July

JANUARY 2021

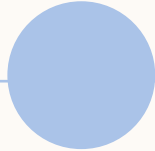
D.C. Circuit Court of Appeals affirms EIS, reverses halt to operations. DAPL is STILL operating today without a permit!

INFLUENTIAL FACTORS



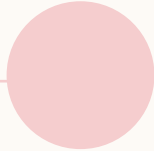
TREATY IMAGINARY

History of violations
to tribal sovereignty
invalidate treaty
rights argument used
by tribes



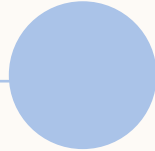
LEVELS OF LEGALITY

FPIC under UN
international human
rights law and
protests



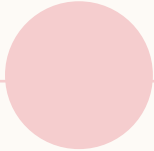
PERMITTING PROCESS

Western *scientific
materialism*
worldview in NEPA,
flawed consultations
and data



EXECUTIVE POWER

Changes EJ
considerations in
NEPA and
permitting/operation
decisions

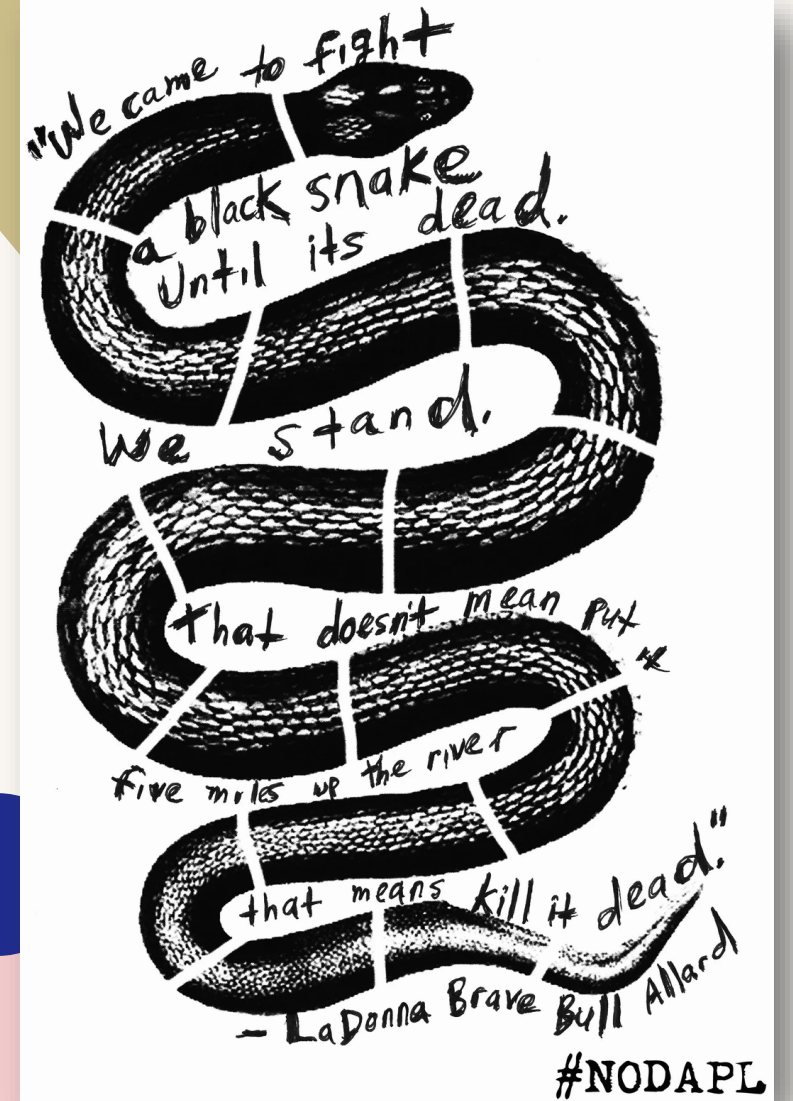


COURT OPINION

Abides by NEPA
guidelines and court
precedents, often do
not favor tribal rights

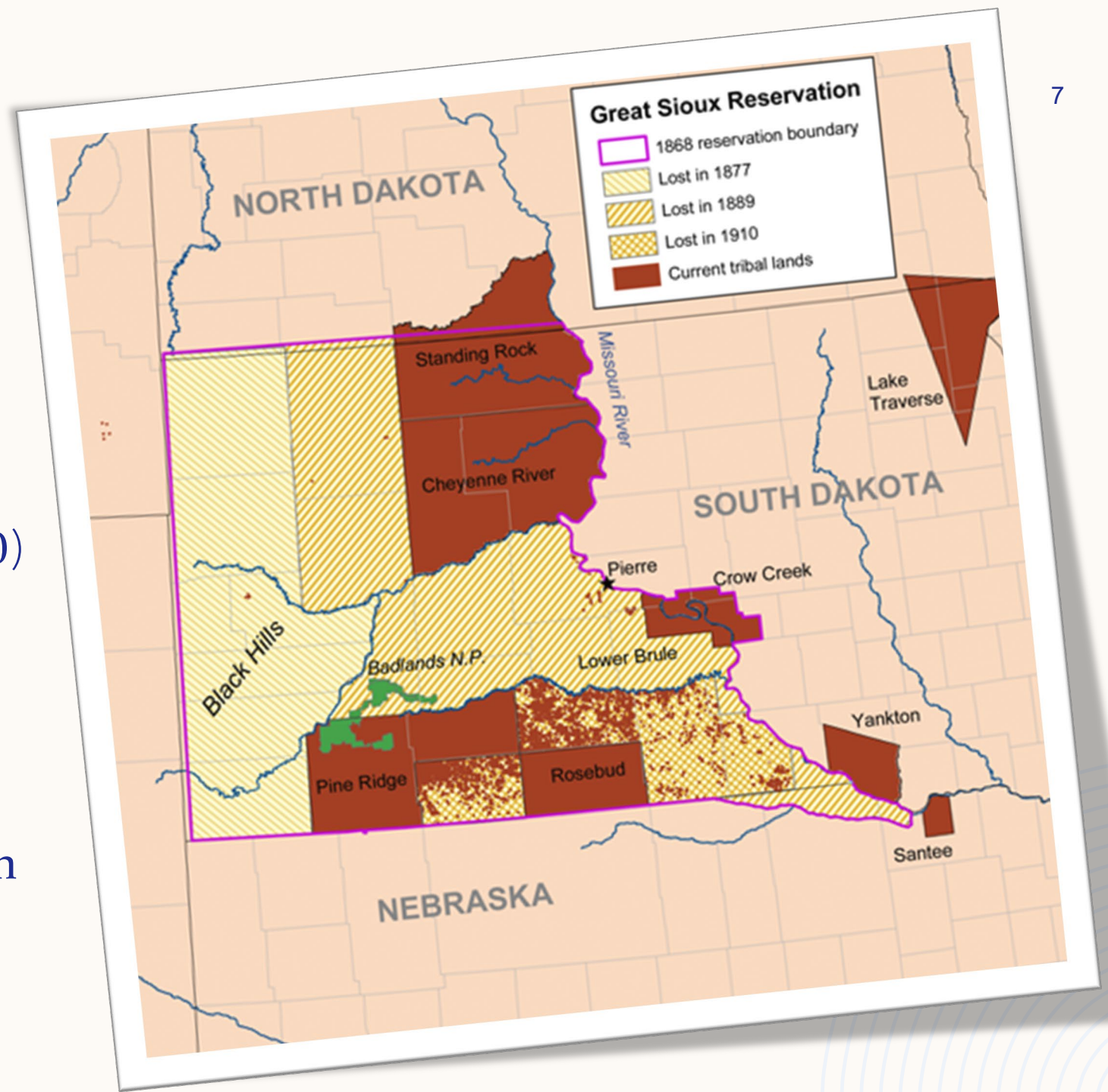
COLONIAL HISTORY

- 1851 Fort Laramie Treaty: 134m acres, \$50,000
- Gold and railroads → displacement
- 1868 Fort Laramie Treaty: 25m acres
- Gold discovered in Black Hills
- *Agreement of 1877* illegally seizes Black Hills
- *United States v. Sioux Nation of Indians* (1980) offered compensation, no land back

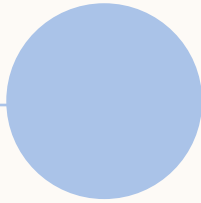


DISPOSSESSION & EXTRACTION

- Massacre at Wounded Knee (1890)
- Congress appropriates millions of acres (1889, 1910) overriding treaty rights
- Bison decline and dust bowl
- Flooding of Oahe Dam by Corps evicts 190 families
- Now 400,000 acres on which there are 500 oil wells

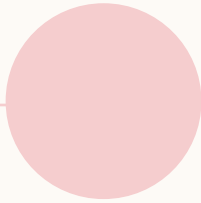


PRINCIPLE ACTORS



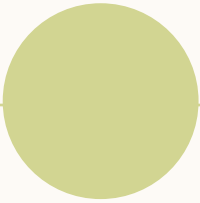
ENERGY TRANSFER PARTNERS

- Litigators fabricated existence of sacred sites
- No violation of treaty rights
- Racketeering claims
- Local job creation
- Property taxes
- Safer than other methods
- Energy security



US ARMY CORPS OF ENGINEERS (CORPS)

- Federal agency responsible for independent evaluation
- Prepares Environmental Assessment (EA) as part of National Environmental Policy Act (NEPA)
- Follows Council on Environmental Quality (CEQ) guidance



STANDING ROCK SIOUX TRIBE (SRST)

- Represented by the non-profit Earthjustice
- Points of contention:
 1. Inadequate consultation
 2. Infringe on cultural resources (i.e. fishing)
 3. Infringe on treaty rights

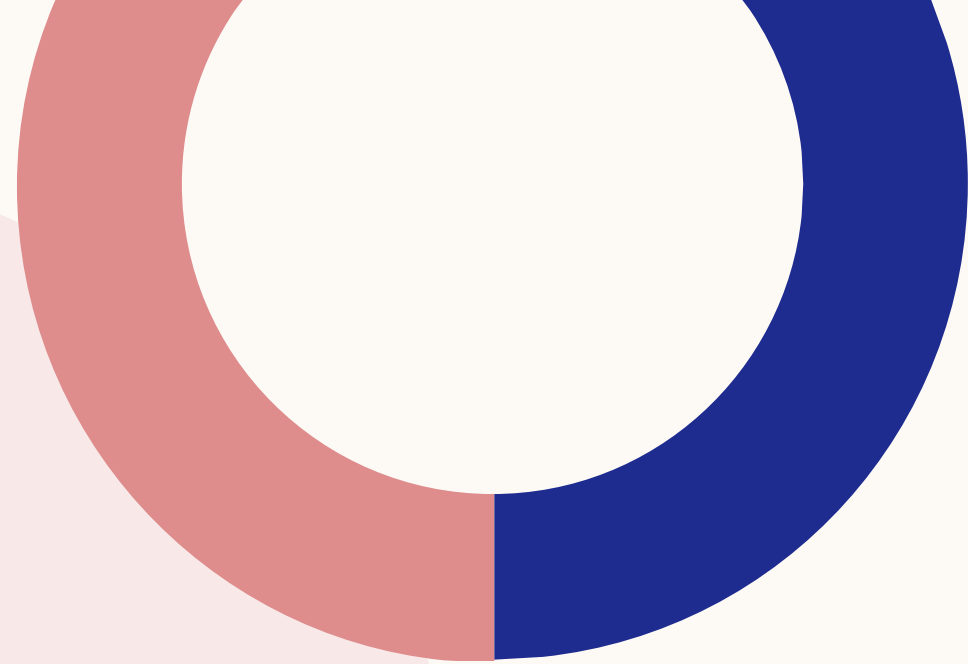
TREATY IMAGINARY

- Lakota & AIM Occupy Wounded Knee 1973
- Rosebud Sioux Tribe – Keystone XL

- Congress can abrogate treaty rights—*United States v. Kagama* (1886) and *Lone Wolf v. Hitchcock* (1903)
- *United States v. Sioux Nation of Indians* (1980)—compensation, but no treaty breach
- Stakeholder > government-to-government (Mitigation Acts of 1998)

CONTRADICTIONS

- E.O. 13175 & CEQ → “honor tribal treaty and any other rights”
- DOI → “treaties are agreements between two sovereign nations and are, along with the Constitution and Federal laws, the supreme law of the United States”



LEVELS OF LEGALITY

- **Free, Prior, and Informed Consent (FPIC)** under United Nations Declaration on the Rights of Indigenous People (UNDRIP)
- UN Permanent Forum on Indigenous Issues responds to violent protests in 2016
 - Calling on Biden to shut down (TBD)
 - Agencies to reform (TBD)
 - Codify FPIC H.R. 2689, 2532, S.4331, none passed
 - In court, « highly controversial » for *other* reasons

PERMITTING PROCESS & EJ

- NEPA & E.O. 12898 → “hard look” at EJ
- FONSI finds no disproportionate harm to minority/low-income community
- Court rules ‘cultural, social, economic factors amplify impact on tribes’
- *Scientific materialism*: non-Native scientists
- “Culture is not a resource that can be managed”



TRIBAL CONSULTATION AND DATA LIMITATIONS

Time
Commitment

Exhausting

Lack
compensation

Lack of trust

Consulting too
late

Inadequate
resources &
training

- Corps dismiss tribal concerns in initial 2016 EA
- Dakota Access, LLC responds “impossible request to accommodate”
- Procedural, already decided upon, about adapting
- **Data Sovereignty** issues → inconsistent, mistrust
- 5-20% NA unaccounted for in census
- Health, pollution, impacts due to climate change
- Simple demographic data ≠ cumulative impacts
- Interconnected eco-cultures, preexisting generational stressors can not be reduced to statistics

EXECUTIVE POWER

E.O. 12898

Clinton (1994) EJ for minority & low-income, “differential patterns of subsistence”

E.O. 13175

Clinton (2000) regular, meaningful, robust consultations and respect sovereignty & treaty rights

2021 P.M.

Biden reaffirms 2009 P.M. agencies submit implementation plan for E.O. 13175 to OMB to help enforce

2017 P.M.

Trump advance permitting, allow construction and operation, override EIS at the time

TBD...

CEQ currently reviving 2020 removal of indirect & cumulative impact mandates. & Biden can shut it down!

COURT OPINION

- March 2020: “highly controversial” to trigger EIS due to opposition from *agencies and experts*, not tribes
 1. Leak-detection system with 80% fail rate
 2. Poor safety record of DAPL operator Sunoco/ETP
 3. Ice interfering with oil recovery in the event of a winter spill
 4. Mainly, underestimated Worst Case Discharge (WCD) impacts
- Court dismissed non-NEPA-based claims by tribes to address hunting/fishing and EJ effects
- Ruled operations should halt in March 2020, D.C. Circuit Court of Appeals reversed injunction based on *Monsanto Co. v. Geertson Seed Farms* (2010)

CONCLUSIONS

- Tribal sovereignty shaped by history of **treaty rights violations**, extractivism, and land dispossession
- **International law** and **extralegal** measures may influence legislative and executive action
- **NEPA** & **NHPA** reviews fail to account for eco-cultural interconnectedness and vulnerabilities
- Flawed tribal consultations and data limitations
- **Executive power** influenced EJ approach and permitting decisions, fickle
- **Courts** follow NEPA guidelines

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